

Sanjay Kumar Gupta v. Consumer Grievances Redressal Forum & Ors.

High Court of Judicature at Allahabad · Division Bench · 13 January 2014 · Writ - C No. 1888 of 2014 · **Writ disposed of; petitioner relegated to clause 6.5.**

HEADNOTE

On a writ complaining of incorrect billing and non-communication of meter-reading status, the Division Bench held that clause 6.5 of the U.P. Electricity Supply Code, 2005 is a complete mechanism for such grievances and disposed of the petition, permitting the petitioner to approach respondent No. 2 for consideration in accordance with law.

FACTUAL SUMMARY

Sanjay Kumar Gupta invoked the writ jurisdiction of the Allahabad High Court against the Consumer Grievances Redressal Forum at the Commissionerate and two others. He alleged that the respondents had billed him incorrectly and had not informed him of the correct status of his meter reading. He sought judicial correction of the disputed bill and meter-reading information.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 is a complete mechanism for redressal of grievances of incorrect billing and non-communication of correct meter-reading status; the petitioner may approach respondent No. 2, who may consider the same in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILL AND METER-READING STATUS

The Court did not examine the bill or meter status on merits and relegated the petitioner to clause 6.5. ¶ 1